PRIVACY POLICY

Effective Date: April 7, 2026

Agritourism Adventures (the "Partnership," "we," "us," or "our") is committed to protecting the privacy and security of your personal data. This Privacy Policy explains how we collect, use, disclose, and safeguard your information when you visit our website https://agritourismadventures.com/ and utilize our agritourism services.

This policy is designed to comply with the **Data Protection Act, 2019 (Kenya)**, the **General Data Protection Regulation (GDPR)**, and other applicable international data protection standards.

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1. DEFINITIONS

- **"Personal Data"** means any information relating to an identified or identifiable natural person ("Data Subject").
- **"Processing"** refers to any operation performed on personal data, such as collection, storage, use, or disclosure.
- **"Services"** includes Farm Tours, Dairy + Tea Safaris, Agricultural Wildlife Safaris, Cultural Tours, Community Homestays, and Educational Tours provided by Agritourism Adventures.

2. DATA WE COLLECT

We collect several types of information to provide and improve our services. Depending on how you interact with us, we may collect:

A. Personal Identifiers and Contact Details (Provided Voluntarily)

- **Identity Data:** Full name, date of birth, gender, nationality, and passport/ID details (where required for bookings, permits, safety, and guest verification).
- **Contact Data:** Email address, phone number, postal/physical address, and emergency contact details.

B. Booking, Travel, Preference, and Service Information

- **Booking Data:** Tour selections, dates, pickup/drop-off details, number of travelers, and special requests.
- **Travel & Preference Data:** Dietary requirements, accessibility needs, language preferences, accommodation preferences, and areas of agricultural interest.
- **Health / Safety Data (where necessary):** Medical conditions, allergies, or mobility information relevant to safely delivering physical tours and activities. We ask you not to provide more information than necessary. Where this information is considered sensitive (special category) data, we process it only where permitted by law and/or with your explicit consent when required.

C. Payment and Transaction Information

- **Financial Data:** Payment card details, mobile money/payment account details, billing address, payment confirmations, and transaction references. **Note:** Card and payment details are typically processed directly by secure third-party payment processors; we may receive limited payment-related information such as confirmation status and reference numbers.

D. Website, Device, and Cookie Data (Collected Automatically)

- **Technical Data:** IP address, device identifiers, browser type and version, time zone settings, operating system and platform.
- **Usage Data:** Pages viewed, links clicked, time spent on pages, referral URLs, and interaction patterns.
- **Cookie/Tracking Data:** Cookie identifiers and similar technologies used for website functionality, analytics, and (where applicable) marketing.

E. Communications and Customer Support

- **Correspondence Data:** Messages you send to us (e.g., email, web forms, WhatsApp or other channels), feedback, reviews, and call records/notes where applicable.

F. Information from Third Parties

- We may receive personal data from travel agents, educational institutions, research partners, or group coordinators who book experiences on your behalf, and from service providers (e.g., payment processors) to confirm transactions.

3. LEGAL BASIS FOR PROCESSING

We process your personal data under the following legal frameworks:

- **Performance of a Contract:** To facilitate your tour bookings and homestays.
- **Consent:** Where you have given clear consent for specific processing (e.g., subscribing to our newsletter).
- **Legal Obligation:** To comply with Kenyan laws regarding tourism and financial reporting.
- **Legitimate Interests:** To improve our services and ensure the security of our website.

4. HOW WE USE YOUR DATA

We use your personal data for purposes that are consistent with the Kenya Data Protection Act (2019) and, where applicable, GDPR. Your data is used to:

A. Booking, Delivering, and Managing Services

- Process and manage tour bookings, reservations, itineraries, and guest administration.
- Process payments and issue confirmations/receipts.
- Coordinate logistics (e.g., transport, farm access, guides, accommodation and community homestays).

B. Communication

- Provide service-related communications (e.g., booking updates, itinerary changes, safety notices, and customer support responses).
- Respond to enquiries and requests you make.

C. Safety, Security, and Duty of Care

- Identify and contact guests in the event of an emergency.
- Manage health/safety needs (e.g., dietary restrictions, allergies, accessibility) relevant to your experience.
- Maintain website and operational security, prevent fraud, and protect our guests, community partners, and business.

D. Marketing and Promotions (Where Permitted)

- Send newsletters, offers, and updates where you have consented or where otherwise permitted by law. You can opt out at any time.

E. Service Improvement and Analytics

- Understand how our website and services are used, troubleshoot issues, and improve user experience and tour quality.
- Conduct internal analysis, reporting, training, and quality assurance.

F. Legal and Compliance

- Comply with applicable legal obligations (including tourism, accounting, tax, and regulatory requirements), and establish/exercise/defend legal claims where necessary.

5. DATA SHARING AND DISCLOSURE

We do not sell your personal data. We only disclose your data where necessary for the purposes described in this Policy, including:

A. Local Partners and Experience Hosts

- **Farming Communities, Homestay Hosts, Guides, and Facilitators:** We share relevant details needed to deliver your itinerary (e.g., name, dates, preferences, dietary/accessibility needs, and logistics).

B. Service Providers (Processors)

- **Payment Processors:** To process transactions and manage payment confirmations/refunds.
- **Transport and Logistics Providers:** Where required to provide transfers, pickups, or other operational services.
- **IT and Website Service Providers:** Hosting, analytics, email delivery, customer relationship tools, and security services. We require service providers to use appropriate safeguards and to process personal data only on our instructions.

C. Legal, Regulatory, and Safety Disclosures

- **Legal Authorities / Regulators:** Where required to comply with a legal obligation, court order, lawful request, or to protect rights, property, and safety.
- **Professional Advisers:** Lawyers, auditors, insurers, and consultants where necessary for compliance or to establish, exercise, or defend legal claims.

D. Business Transfers

- If we undergo a merger, acquisition, restructuring, or sale of assets, your data may be transferred as part of that transaction subject to appropriate safeguards.

E. International Transfers

Since we serve international travelers and may use service providers that operate internationally, your personal data may be transferred outside Kenya. Where this occurs, we implement appropriate safeguards in line with the Kenya Data Protection Act (2019) and, where applicable, GDPR (such as contractual safeguards and security controls) to ensure your data remains protected.

6. DATA STORAGE AND SECURITY

We store personal data in electronic and/or physical records, depending on the nature of the interaction and operational needs. We implement appropriate technical and organizational measures designed to protect personal data against loss, misuse, unauthorized access, disclosure, alteration, or destruction.

Our security measures may include:

- **Encryption in transit:** SSL/TLS on our website and secure transmission methods where applicable.
- **Access controls:** Role-based access, least-privilege principles, and staff confidentiality obligations.
- **Secure storage:** Reputable hosting and secure databases, with appropriate configuration and monitoring.
- **Operational safeguards:** Staff training, incident handling procedures, and periodic reviews of security practices.
- **Payment security:** Use of reputable third-party payment processors; we generally do not store full card details on our systems.

Despite our efforts, no method of transmission or storage is 100% secure. If you suspect any unauthorized access or misuse, please contact us immediately using the details in Section 12.

7. DATA RETENTION

We retain your personal data only for as long as necessary to fulfill the purposes for which it was collected, including legal, accounting, or reporting requirements. Typically, booking records are retained for seven (7) years in accordance with Kenyan tax and commercial laws.

8. YOUR LEGAL RIGHTS

Under the Kenya Data Protection Act (2019) and, where applicable, GDPR, you may have the following rights (subject to applicable limitations and exemptions):

- **Access:** Request confirmation of whether we process your personal data and obtain a copy of it.
- **Correction/Rectification:** Request correction of inaccurate or incomplete data.
- **Deletion/Erasure:** Request deletion of your data where permitted (the "right to be forgotten").
- **Objection:** Object to certain processing, including direct marketing.
- **Restriction:** Request restriction of processing in certain circumstances.
- **Data Portability:** Request transfer of your data to you or to another service provider, where technically feasible.
- **Withdraw Consent:** Withdraw consent at any time where processing is based on consent (this will not affect the lawfulness of processing before withdrawal).
- **Lodge a Complaint:** Raise concerns with us and/or lodge a complaint with the Office of the Data Protection Commissioner (ODPC) of Kenya.

To exercise your rights, contact us using the details in Section 12. We may need to verify your identity before responding.

9. COOKIES AND TRACKING TECHNOLOGIES

We use cookies and similar technologies (such as pixels and local storage) to provide, protect, and improve our website and services.

A. What Cookies Are

Cookies are small text files stored on your device when you visit a website. They help the website remember your preferences and understand how visitors use the site.

B. Types of Cookies We May Use

- **Strictly Necessary Cookies:** Required for core website functionality (e.g., security, network management).
- **Preferences/Functionality Cookies:** Remember your settings and preferences (where applicable).
- **Analytics/Performance Cookies:** Help us understand website traffic and usage (e.g., pages visited, time on site) so we can improve performance.
- **Marketing Cookies (if used):** Used to measure campaign effectiveness and/or deliver more relevant advertising. Where required by law, we will obtain your consent before using these cookies.

C. Your Choices and Controls

You can control cookies through your browser settings (e.g., blocking or deleting cookies). If you disable certain cookies, parts of our website may not function properly. Where we use non-essential cookies that require consent, you can manage your preferences via our cookie banner or settings (where available).

D. Do Not Track

Some browsers offer “Do Not Track” signals. Because there is no consistent industry standard for responding to these signals, we may not respond uniformly. You can still manage cookies through your browser settings.

10. CHILDREN'S PRIVACY

Our services are often educational and family-oriented. We do not knowingly collect data from children under 18 without explicit parental or guardian consent.

11. CHANGES TO THIS POLICY

Agritourism Adventures reserves the right to update this Privacy Policy periodically. We will notify you of any significant changes by posting the new policy on our website and updating the "Effective Date."

12. CONTACT INFORMATION

For any questions regarding this Privacy Policy or to exercise your data rights, please contact our Data Protection Liaison at:

Agritourism Adventures Website: https://agritourismadventures.com/ Location: Kenya Email: privacy@agritourismadventures.com

If you are dissatisfied with our response, you have the right to lodge a complaint with the **Office of the Data Protection Commissioner (ODPC) of Kenya**.